

HOUSE BILL 1661

By Davis

AN ACT to amend Tennessee Code Annotated, Title 35;
Title 37; Title 47 and Title 50, relative to minors.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 10, is amended by adding the following as a new part:

37-10-601.

As used in this part:

(1) "Content creation" means sharing content on an online platform in exchange for compensation;

(2) "Content creator":

(A) Means an individual who is eighteen (18) years of age or older, including a family member, who creates video content performed in this state in exchange for compensation; and

(B) Includes a proprietorship, partnership, company, or other corporate entity assuming the name or identity of a particular individual or family member, for the purposes of content creation;

(3) "Minor":

(A) Means an individual who has not yet attained eighteen (18) years of age; and

(B) Does not include an emancipated minor; and

(4) "Online platform":

(A) Means a public-facing website, web application, or digital application, including a mobile application; and

(B) Includes a social network, advertising network, mobile operating system, search engine, email service, monetization platform to sell digital services, streaming service, paid subscription, or internet access service.

37-10-602.

(a)

(1) Except as otherwise provided in subdivision (a)(2), a minor is engaged in the work of content creation when the following criteria are met at any time during the preceding twelve-month period:

(A) The likeness, name, or photograph of the minor is included in at least thirty percent (30%) of the content creator's compensated video content produced within a thirty-day period; for purposes of this subdivision (a)(1)(A), content percentage is measured by the percentage of time the likeness, name, or photograph of the minor is the subject of an oral narrative in a video segment as compared to the total length of the segment; and

(B) The number of views received per video segment on any online platform met the online platform's threshold for generating compensation or the content creator received actual compensation for video content equal to or greater than one cent (\$0.01) per view.

(2) A minor is not engaged in the world of content creation when the minor appears incidentally in a video that depicts a public event that a reasonable person would know is being or will be broadcast, including a concert, competition, or sporting event, and the public event is published or otherwise broadcasted by a content creator.

(b) A minor may produce, create, and publish the minor's own content and is entitled to all compensation for the minor's content creation; provided, that a minor engaged in the work of content creation as the producer, creator, and publisher of content that features another minor who meets the threshold for content creation described in subdivision (a)(1) must comply with the requirements of §§ 37-10-603, 37-10-604, and 37-10-605.

37-10-603.

(a) A content creator whose content features a minor engaged in the work of content creation shall maintain the following records and retain the records until the minor reaches twenty-one (21) years of age:

(1) The name and documentary proof of the age of the minor engaged in the work of content creation;

(2) The amount of content creation that generated compensation as described in § 37-10-602(a)(1) during the reporting period;

(3) The total number of minutes of content creation for which the content creator received compensation during the reporting period;

(4) The total number of minutes a minor was featured in content creation during the reporting period;

(5) The total compensation generated from content creation featuring a minor during the reporting period; and

(6) The amount deposited into the trust account for the benefit of the minor engaged in the work of content creation as required by § 37-10-604.

(b) The records required by subsection (a) must be readily accessible to the minor for review. The content creator shall provide notice to the minor of the existence of the records.

(c) Subsections (a) and (b) do not apply when:

(1) The content creator is a minor who produces, creates, and publishes the minor's own content; and

(2) The content published by the minor does not feature other minors.

37-10-604.

(a) A content creator shall compensate a minor who is engaged in the work of content creation, as described in § 37-10-602(a)(1). The content creator shall set aside gross earnings on the video content that includes the likeness, name, or photograph of the minor in a trust account to be preserved for the benefit of the minor until the minor reaches eighteen (18) years of age, according to the following distribution:

(1) If only one (1) minor meets the content threshold described in § 37-10-602(a)(1), the percentage of total gross earnings on any video segment, including the likeness, name, or photograph of the minor that is equal to or greater than the content percentage that includes the minor; or

(2) If more than one (1) minor meets the content threshold described in § 37-10-602(a)(1) and a video segment includes more than one (1) of the minors, the percentage of total gross earnings on any video segment, including the likeness, name, or photograph of the minor that is equal to or greater than the content percentage that includes one (1) or more of the minors, divided between the minors according to the percentage of the content that each minor provided for each applicable video segment.

(b) A trust account required under subsection (a) must, at a minimum, provide that:

(1) The money in the account is available only to the minor engaged in the work of content creation;

(2) The account is held by a state or national bank, corporate fiduciary, or trust company; and

(3) The money in the account becomes available to the minor engaged in the work of content creation upon the minor reaching eighteen (18) years of age, or upon a declaration that the minor is emancipated, whichever is earlier.

(c) If a content creator knowingly or recklessly violates this section, then an affected minor who was engaged in content creation as described in § 37-10-602(a)(1), or an affected individual who was a minor engaged in content creation as described in § 37-10-602(a)(1), may bring a civil action to enforce this section. In an action brought in accordance with this subsection (c), the court may award the following damages:

(1) Actual damages, including any compensation owed under this section;

(2) Punitive damages, as provided in § 29-39-104, if appropriate; and

(3) Reasonable court costs and attorney's fees.

(d) This section does not affect a:

(1) Right or remedy available under another law of the state; or

(2) Party that is not the content creator or the minor who engaged in the work of content creation.

(e) This section does not require a minor who produces, creates, and publishes the minor's own content to place compensation earned from the minor's content into a trust; provided, that the minor shall comply with this section for the compensation earned by another minor if the minor's content features another minor who meets the threshold for content creation described in § 37-10-602(a)(1).

37-10-605.

(a) The individual who posted the content, the account owner, or another person who has control over the account shall delete and remove from any online platform content featuring the likeness of a minor when a removal request is made by:

(1) The minor whose likeness appears in the content; or

(2) By an individual who:

(A) Is eighteen (18) years of age or older at the time of making the request; and

(B) Was a minor when the individual's likeness was used in the content.

(b) If the individual, account owner, or other person who has control over the account does not comply with a request made pursuant to subsection (a), then the minor or individual who made the request may commence a civil action against the individual, account owner, or other person for damages, injunctive relief, and any other relief the court finds just and equitable to enforce this section.

SECTION 2. This act takes effect January 1, 2027, the public welfare requiring it, and applies to conduct occurring on or after that date.